

INTELLECTUAL PROPERTY

Lecture 7

“Know Your

Patent”

Overview

- ❑ Law governing IP
- ❑ Meaning
- ❑ Types of IP
 - Patent
 - Trademark
 - Copyright
- ❑ Infringement
- ❑ Case Studies
- ❑ Conclusion



Concept of Intellectual Property

The word “**property**” is defined in the concise oxford dictionary as something owned, a possession, especially a house, land, etc. and the right to possession, use etc.

In **legal system** the term “**property**” is a very complex term having different aspects which commonly includes all **legal rights, proprietary rights, and corporeal property.**

Concept of Intellectual Property

cont - - -

**Article 260 of the Constitution of Pakistan, 1973,
defines property:**

**“Property includes any right, title or interest in
property, moveable or immoveable, and any means
and instruments of production”**

Intellectual Process

Whatever someone thinks through the application of his mind is collectively known as *intellectual process* which is the cause of creativity and inventions in this world. If this process is not properly encouraged and rewarded, it causes intellectual frustration leading towards slowing down the process of creation because such persons than start thinking otherwise.

IP

Intellectual property (IP) is a category of property that includes intangible creations of the human intellect.

The most well-known types are copyrights, patents, trademarks, and trade secrets.

What is “Intellectual Property”?

Intellectual Property is a property that arises from the human intellect. It is a product of human creation.

Intellectual Property comprises two distinct forms:

- * Literary & Artistic Works
- * Industrial Property

“Literary & Artistic Works”

* They are books, paintings, musical compositions, plays, movies, radio/tv programs, performances, & other artistic works.

◆ How are they Protected?

* Protected by “**COPYRIGHT**”

“Industrial Property”

- Industrial Property describes physical matter that is the product of an idea or concept for commercial purposes.

◆ How are they Protected?

- * By Patented objects
- * By Trademarks
- * By Industrial Designs
- * By Trade Secrets
- * By Layout-designs
- * By Geographical Indications

What does intellectual property include?

In the modern context the term intellectual property, covers the following aspects in the relevant categories namely:

1. Copyright: literary, artistic and scientific works covering books, journals, magazines, written articles etc.

2. Related rights: these are rights relating to copyrights which cover performances, broadcasts like concerts and shows, etc.

What does intellectual property include?

Cont - - -

3. Trademarks: trademarks, merchandise marks, service marks, commercial names and designations like logos or names for a product with unique geographical origin, such as champagne, etc.

4. Geographical indications: is method in trade marks by using such words which show the geographical origin of goods and services, etc.

What does intellectual property include?

Cont - - -

5. Patents: inventions like a new form of airplane engine, a floor cleaner, etc.

6. Designs or industrial designs: it includes the shape of a bottle, machine, model of luxury car or any other product, etc.

What does intellectual property include?

Cont - - -

7. unfair competition: it is the newest aspect in the intellectual property which is particularly relating to protection against unfair competition in the market like false claims against a competitor or imitating a competitor with a view to deceive the customer.

What are intellectual property rights?

Intellectual property rights are such rights which are given to persons who are the authors or creators of the new and original literary and artistic works such as books, articles , other writings ,paintings , musical compositions, sculpture , films and computer programs by application of their creativity process and intellect.

What are Intellectual Property Rights? Cont - - -

IPR are given to such individuals to compensate for their suffering during such creative process and their investments.

These rights are given for a certain period of time and after which general public have the right to freely benefit from them in their benefit and use.

NECESSITY OF INTELLECTUAL PROPERTY RIGHTS PROTECTION

Intellectual property rights protection is necessary due to following reasons:

- 1. Encouragement to creativity by ensuring its reward: all the creations are used by human beings for their enjoyment and benefit and due to that reason they have social applications in economic and social terms like financial gains and reputation.**

1. Encouragement to creativity by ensuring its reward cont - - -

If there will be no reward for the sufferings of creativity nobody will ever undertake to bear such intellectual and physical sufferings and troubles in this world.

Thus, protection of intellectual property rights will encourage intellectual pursuits and efforts due to economic benefits and social recognition.

NECESSITY OF INTELLECTUAL PROPERTY RIGHTS PROTECTION cont -

2. Innovations in technology: no one will invest his hard earned money for creativity and innovations for a long time without any reasonable return or at least return of originally spend money. Thus, intellectual property rights are designed to provide protection for the results of investment in the development of new technology giving the incentive and means to finance further research and development activities.

NECESSITY OF INTELLECTUAL PROPERTY RIGHTS PROTECTION cont -

3. Protection of users and consumers: pirates and imitators are not only depriving the intellectual property right- holders from their legal rights but also looting the users and consumers of such products and goods which are not original or produced by the real producers. In this way quality in goods and services is compromised and tremendous losses are also caused to manufacturers and producers.

3. Protection of users and consumers

cont - - -

Thus, marks, brand names, trade marks, service marks and such other distinctive signs require legal protection to protect the interest of users and consumers of such goods by making easy and informed choice of different goods and services as per their requirements without any risk and economic loss.

NECESSITY OF INTELLECTUAL PROPERTY RIGHTS PROTECTION cont -

4. Transfer of technology to less developed nations and countries of the world: suitable protections to the intellectual property rights are necessary for transfer of technology from developing countries to underdeveloped countries. Thus, a proper and functional intellectual property environment may facilitate the transfer of technology in the form of foreign direct investment, transfer of technology by franchising and licensing, in the form of joint ventures and other big projects which may generate employment opportunities in the host countries and economic growth and development.

WIPO



- WIPO (World Intellectual Property Organization) was established by the WIPO Convention in 1967
- The WIPO is a **specialized agency** of the United Nations.
- It **promote the protection** of IP throughout the world.
- Its headquarters are in Geneva, Switzerland

World Intellectual Property Day

April 26

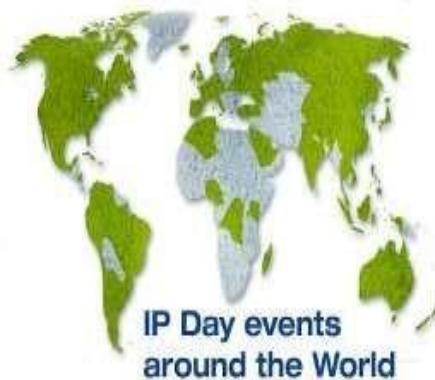
World Intellectual Property Day 2012 *Visionary Innovators*

Your favorite visionary innovators



Source: Number of «likes» on World IP Day Facebook Page

How many countries reported events?



About World IP Day

IP Day offers an exciting chance each year to join with others around the globe, to highlight, discuss and demonstrate how the IP system contributes to the flourishing of music and the arts and to driving the technological innovation that helps shape our world.

April 26

WIPO's birthday (1970)
World IP Day since 2000

www.wipo.int/ipday

On World Intellectual Property Day this year, WIPO's focus is on promoting **VISIONARY INNOVATION** as the key to a secure future.



WORLD INTELLECTUAL PROPERTY ORGANIZATION cont

Internationally, World Intellectual Property Organization (WIPO) is creating awareness by taking different steps like:

- **launching mass awareness campaigns;**
- **by celebrating world intellectual property day;**
- **Promoting intellectual property rights by collaborating national institutions of the countries;**
- **Emphasizing the necessity and importance of intellectual property rights education at national level**

WORLD INTELLECTUAL PROPERTY ORGANIZATION cont

- by providing maximum opportunities to develop and train human resource in the field of intellectual property;
- by arranging seminars and workshops on different aspects of intellectual property.

INTELLECTUAL PROPERTY ESTABLISHMENTS IN PAKISTAN

All the Intellectual Property Rights laws in Pakistan are being administered and managed by three different ministries of the Federal Government, which are as under:

- 1. Ministry of Education: the Copyright Ordinance, 1962.**
- 2. Ministry of Industries and production:**
 - The Registered Designs Ordinance, 2000.**
 - The Registered Layout-Designs of Integrated Circuits Ordinance, 2000.**
 - The patents ordinance, 2000.**

INTELLECTUAL PROPERTY ESTABLISHMENTS IN PAKISTAN

3. Ministry of Commerce:

- **the Trade Marks Ordinance, 2001.**
- **the Merchandise Marks Act, 1889.**

The Central Copyright Office

- The central copyright office is located in Karachi, province of Sindh, the most industrialized and populated city of Pakistan. It is functioning under the administrative control of the ministry of education, Government of Pakistan.
- Ministry of education is responsible to carry out necessary changes and amendments in the Copyright Ordinance, 1962, from time to time, being a subject allocated to it under the rules of business, 1973, of the federal government.

The Trade Marks Registry

The Trade Marks Registry is also located in Karachi. It is functioning under the administrative control of Ministry of Commerce, Government of Pakistan.

Ministry of commerce is also responsible to carry out necessary changes and amendments in the Trade Marks Ordinance, 2001, and other related laws from time to time.

The Patent Office

- The patent office is also located in Karachi. It is functioning under the administrative control of Ministry of Industries and Production, Government of Pakistan, as an attached office.
- Ministry of Industries and Production is also responsible to carry out necessary changes and amendments in the Patents Ordinance, 2000, the Registered Designs Ordinance, 2000, and the Registered Layout- Designs of Integrated Circuits Ordinance, 2000.

THE COPYRIGHT ORDINANCE 1962

Meaning of Copyright:

- Under this ordinance, the term “copyright” means the exclusive right;

Meaning of Copyright cont

In the case of a literary, dramatic, musical work, artistic work, or cinematographic work to do and authorize the doing of any of the following acts, namely:

1. to reproduce the work in any material form;
2. to publish the work;
3. to perform the work in public;
4. to use the work in a cinematographic work
5. to show the work on television

OWNERSHIP OF COPYRIGHT

No person shall be entitled to copyright or any similar right in any work, whether published or unpublished, otherwise than under and in accordance with the provisions of this ordinance, or of any other law for the time being in force,

OWNERSHIP OF COPYRIGHT

✓ Works in which copyright subsists:

Subject to the provisions of this section and to the other provisions of this ordinance, copyright shall subsists through out Pakistan in the following classes of works such as :

- Original literary, dramatic, musical and artistic works.
- cinematographic works
- records

RIGHTS OF BROADCASTING ORGANIZATIONS, PERFORMERS AND PRODUCERS OF PHONOGRAMS (SOUND RECORDING)

- ✓ **Rights of broadcasting organization:**
Broad casting organizations shall enjoy the right to authorize:
 - i. the rebroadcast of their broadcasts
 - ii. the fixation of their broadcasts
- This right shall subsist until 25 years.

REGISTERED DESIGNS ORDINANCE, 2000

A design, may upon application made by the person claiming to be the proprietor, is registered under this ordinance in respect of any article or set of articles specified in the application.

REGISTERED DESIGNS ORDINANCE, 2000 **cont - - -**

Subject to the provisions of this ordinance a design shall not be registered unless it is new or original and in particular, shall not be so registered in respect of any article if it is the same as a design which before the date of the application for registration has been registered in Pakistan or

REGISTERED DESIGNS ORDINANCE, 2000 **cont - - -**

published anywhere in the world in respect of the same or any other article or differs from such a design only in immaterial details or in features which are variants commonly used in the trade.

REGISTERED DESIGNS ORDINANCE, 2000 **cont - - -**

Penalty/ punishment

Any person violating the said ordinance shall be punishable with imprisonment for a term which may extend to 2 years or with fine which may extend to 20,000 rupees- or with both.

THE PATENTS ORDINANCE, 2000

□ Patentable inventions

- ✓ Any invention is patentable if it is new, involves an inventive step and is capable of industrial application.

THE PATENTS ORDINANCE, 2000 **cont**

- - -

- Following shall not be regarded as invention:
 - a discovery , scientific theory, or mathematical method
 - a literary, dramatic or musical work or any other creation of purely aesthetic character
 - a scheme, rule or method for performing a mental act, playing a game or doing business.

THE TRADEMARKS ORDINANCE, 2001

A trade mark may be registered in accordance with the provisions of this ordinance in respect of:

goods

services or

both goods and services,

THE TRADEMARKS ORDINANCE, 2001 **cont - - -**

Comprised in the prescribed classification of goods or services, in accordance with the international classification of goods and services.

Patentable Subject Matter

Invention

- Relates To A Process Or Product Or Both
- Involves An Inventive Step
- Be Capable Of Industrial Application
- A Machine

Is A Patent Granted In One Country Enforceable In Other Countries?

- No, there is nothing like a global patent or a world patent. Patent rights are essentially territorial in nature
- Granting a patent in one country of the Union does not force other countries to grant the patent for the same invention.
- The refusal of the patent in one country does not mean that it will be terminated in all the countries

Youngest Patent-holder on wheelchair



- ❖ JAIPUR: Drawing inspiration from scientist Stephen Hawking, a wheelchair-bound nine-year-old boy here has invented a game of six-player circular chess. The boy, **Hridayeshwar Singh Bhati** has got the game's design patented in his name.

A) Set apart from surrounding text....

Correct use:

Raymond Textile is India's leading producer of worsted suiting fabric with over 60% market share.

„Raymond Textile“ is India's leading producer of worsted suiting fabric with over 60% market share.

Incorrect use:

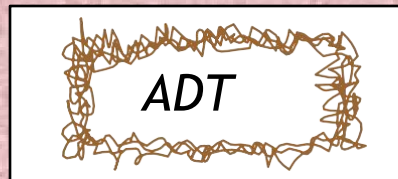
Raymond Textile is India's leading producer of worsted suiting fabric with over 60% market share.

B) Specify font, size, proportion and placement

Correct use:



Incorrect use:



C) Do not change spelling

Correct use:

- Calvin Klein
- Tommy Hilfiger
- MPC POTTERIES
GWALIOR

Incorrect use:

- Kalvin Klein
- Tommy-Hilfiger
- MPC P/G

Trademarks



Name

Logotype

Symbol

Slogan

Shape

Color

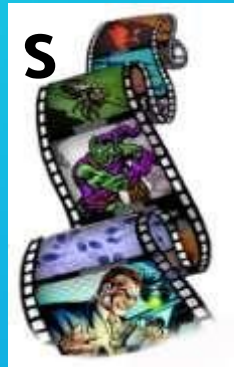


What is covered by copyright?

Literar
y



Film
s



Dramati
c



Musica
l



Artisti
c



Sound
Recording



What is not covered by copyright?

- ❑ Ideas
- ❑ Facts
- ❑ Recipes
- ❑ Works lacking originality (e.g. The phone book)
- ❑ Names, titles or short phrases



Apple sued HTC over iPhone patents

- Apple sued phone maker HTC and has filed a complaint with the U.S. International Trade Commission, alleging that the Taiwanese company is infringing 20 Apple patents related to the [iPhone](#)
- Steve Jobs, Apple's CEO, said in a statement "We think competition is healthy, but competitors should create their own original technology, not steal ours."



CONCLUSION

- Create yourself, rather than using other"s creations
- Do not use competitor"s mark in such way that it harms competitor in unfair way
- No comparisons that are likely to cause confusion

Class Task

A large company discovered that a small company was infringing one of its patents. It wrote the small company and asked it to stop. The small company denied that it was infringing. Because of personnel changes in the large company, the correspondence file was lost and only rediscovered eight years later. The large company sued. What would be the result? Why?

Identify?

Reason?

Results?

<https://courses.lumenlearning.com/masterybusinesslaw/chapter/reading-exercise-s-intellectual-property/>